

House File 639

S-3064

1 Amend House File 639, as amended, passed, and reprinted by
2 the House, as follows:

3 1. By striking everything after the enacting clause and
4 inserting:

5 <Section 1. Section 476.33, Code 2025, is amended by adding
6 the following new subsection:

7 NEW SUBSECTION. 5. For hearings initiated under this
8 chapter, a majority of the members of the commission shall be
9 present during any live testimony. If at any point during live
10 testimony at a hearing less than a majority of the members
11 are available for any reason, the meeting shall pause until a
12 majority of the members of the commission are available.

13 Sec. 2. Section 476A.4, Code 2025, is amended by adding the
14 following new subsections:

15 NEW SUBSECTION. 6. All hearings initiated under this
16 chapter shall follow the attendance rules governing commission
17 members as provided in section 476.33, subsection 5.

18 NEW SUBSECTION. 7. After a hearing, if notice by
19 publication was properly made, an operator of an electric power
20 generation and transmission facility and a property owner may
21 enter a voluntary agreement for an interest in the property
22 without regard to whether the property owner received notice
23 by mail.

24 Sec. 3. NEW SECTION. **476A.4A Objections.**

25 1. A person, including a governmental entity, whose rights
26 or interests may be affected by the proposed facility may file
27 written objections.

28 2. All objections shall be on file with the commission
29 not less than five days before the date of hearing on the
30 application. However, the commission may permit the filing
31 of the objections later than five days before the hearing, in
32 which event the applicant must be granted a reasonable time to
33 meet the objections.

34 3. If a facility is relocated due to an objection filed
35 pursuant to this section, the utilities commission shall not

1 require an applicant to resubmit an application for a permit
2 pursuant to section 479A.3.

3 Sec. 4. Section 476A.6, unnumbered paragraph 1, Code 2025,
4 is amended to read as follows:

5 The commission shall render a decision on the application in
6 an expeditious manner. The commission shall render a decision
7 on an application requesting the power of eminent domain no
8 later than one year after the request for eminent domain is
9 received by the commission. A certificate shall be issued to
10 the applicant if the commission finds all of the following:

11 Sec. 5. NEW SECTION. **476A.16 Access to lines — damages.**

12 1. Individuals or corporations operating transmission
13 lines for the facility shall have reasonable access to
14 the transmission lines for the purpose of constructing,
15 reconstructing, enlarging, repairing, or locating the poles,
16 wires, or construction and other devices used in or upon any
17 line, but shall pay to the owner of the lands and of crops on
18 the lands all damages to the lands or crops caused by entering,
19 using, and occupying the lands for those purposes. This
20 section shall not prevent the execution of an agreement between
21 the person, company, or corporation owning or operating the
22 lines and the owner of the land or crops regarding the use of
23 the land.

24 2. A claim for crop yield loss damages pursuant to this
25 section shall not be precluded from renegotiation under section
26 6B.52 on the grounds that the damages were apparent at the time
27 of settlement or on the grounds that more than five years have
28 elapsed since the date of the settlement.

29 Sec. 6. NEW SECTION. **476A.17 Drainage tile — liability.**

30 For an applicant exercising the power of eminent domain
31 pursuant to this chapter, the operator of the electric power
32 generation and transmission facility shall be liable for
33 repairs of drainage tile installed prior to the installation of
34 the facility, when the installation, construction, operation,
35 maintenance, or repair of the facility is the proximate cause

1 of the damage to the drainage tile. The operator's liability
2 pursuant to this section shall continue for the life of the
3 electric power generation and transmission facility and shall
4 include all of the following:

5 1. The full replacement costs of the drainage tile,
6 including, without limitation, material, labor, and equipment.

7 2. The reclamation and restoration of topsoil as part of any
8 drainage tile repair.

9 Sec. 7. NEW SECTION. **476A.18 Land restoration standards.**

10 1. The commission, pursuant to chapter 17A, shall
11 adopt rules establishing standards for the restoration of
12 agricultural lands during and after facility construction. In
13 addition to the requirements of section 17A.4, the commission
14 shall distribute copies of the notice of intended action and
15 opportunity for oral presentations to each county board of
16 supervisors. Any county board of supervisors may, under the
17 provisions of chapter 17A, and subsequent to the rulemaking
18 proceedings, petition under those provisions for additional
19 rulemaking to establish standards for land restoration after
20 facility construction within that county. Upon the request
21 of the petitioning county, the commission shall schedule a
22 hearing to consider the merits of the petition. Rules adopted
23 under this section shall not apply to land located within city
24 boundaries unless the land is used for agricultural purposes.
25 Rules adopted under this section shall address but are not
26 limited to all of the following subject matters:

27 a. Topsoil separation and replacement.

28 b. Temporary and permanent repair to drain tile.

29 c. Removal of rocks and debris from the right-of-way.

30 d. Restoration of areas of soil compaction.

31 e. Restoration of terraces, waterways, and other erosion
32 control structures.

33 f. Revegetation of untilled land.

34 g. Future installation of drain tile or soil conservation
35 structures.

1 *h.* Restoration of land slope and contour.

2 *i.* Restoration of areas used for field entrances and
3 temporary roads.

4 *j.* Construction in wet conditions.

5 *k.* Designation of a point of contact for an individual,
6 company, or corporation operating a facility for landowner
7 inquiries or claims.

8 2. The county board of supervisors shall cause an on-site
9 inspection for compliance with the standards adopted under this
10 section to be performed at any facility construction project
11 in the county. A licensed professional engineer familiar
12 with the standards adopted under this section and registered
13 under chapter 542B shall be responsible for the inspection.
14 A county board of supervisors may contract for the services
15 of a licensed professional engineer for the purposes of the
16 inspection. The reasonable costs of the inspection shall be
17 paid by the individual, company, or corporation operating the
18 facility.

19 3. If the inspector determines that there has been a
20 violation of the standards adopted under this section, of
21 the land restoration plan, or of an independent agreement on
22 land restoration or line location executed in accordance with
23 subsection 10, the inspector shall give oral notice, followed
24 by written notice, to the individual, company, or corporation
25 operating a facility and the contractor operating for the
26 individual, company, or corporation operating the facility and
27 order corrective action to be taken in compliance with the
28 standards. The costs of the corrective action shall be borne
29 by the contractor operating for the individual, company, or
30 corporation operating the facility.

31 4. An inspector shall adequately inspect underground
32 improvements altered during construction of the facility. An
33 inspection shall be conducted at the time of the replacement
34 or repair of the underground improvements. An inspector shall
35 be present on the site at all times at each phase and separate

1 activity of the opening of the trench, the restoration of
2 underground improvements, and backfilling. The individual,
3 company, or corporation operating the facility and its
4 contractor shall keep an inspector continually informed of the
5 work schedule and any schedule changes. If proper notice is
6 given, construction shall not be delayed due to an inspector's
7 failure to be present on the site.

8 5. If the individual, company, or corporation operating
9 the facility or its contractor does not comply with the
10 requirements of this section, with the land restoration plan
11 or line location, or with an independent agreement on land
12 restoration executed in accordance with subsection 10, the
13 county board of supervisors or a landowner may petition the
14 commission for an order requiring corrective action to be
15 taken. In addition, the county board of supervisors or a
16 landowner may file a complaint with the commission seeking
17 imposition of civil penalties under section 479A.14. A
18 landowner may supply a copy of the complaint to the county
19 board of supervisors where the complaint originated.

20 6. The individual, company, or corporation operating the
21 facility shall allow landowners and the inspector to view the
22 proposed center line of any electric transmission lines prior
23 to commencing trenching operations to ensure that construction
24 takes place in its proper location.

25 7. An inspector may temporarily halt the construction
26 if the construction is not in compliance with this chapter
27 and the standards adopted pursuant to this chapter, the land
28 restoration plan, or the terms of an independent agreement
29 with the individual, company, or corporation operating the
30 facility regarding land restoration or line location executed
31 in accordance with subsection 10, until the inspector consults
32 with the supervisory personnel of the individual, company, or
33 corporation operating the facility.

34 8. The commission shall instruct inspectors appointed by
35 the board of supervisors regarding the content of the statutes

1 and rules and the inspectors' responsibility to require
2 construction conforming with the standards provided by this
3 chapter.

4 9. Petitioners for a permit for facility construction
5 shall file with the petition a written land restoration plan
6 showing how the requirements of this section, and of rules
7 adopted pursuant to this section, will be met. The individual,
8 company, or corporation operating the facility shall provide
9 copies of the plan to all landowners of property that will be
10 disturbed by the construction.

11 10. This section does not preclude the application of
12 provisions for protecting or restoring property that are
13 different than those prescribed in this section, in rules
14 adopted under this section, or in the land restoration plan,
15 if the alternative provisions are contained in agreements
16 independently executed by the individual, company, or
17 corporation operating the facility and the landowner, and if
18 the alternative provisions are not inconsistent with state
19 law or with rules adopted by the commission. Independent
20 agreements on land restoration or line location between the
21 landowner and individual, company, or corporation operating the
22 facility shall be in writing and a copy provided to the county
23 inspector.

24 11. For the purposes of this section, "*construction*"
25 includes the removal of previously constructed facilities or
26 electric transmission lines.

27 12. The requirements of this section shall apply only to
28 facility construction projects commenced on or after June 1,
29 2025.

30 Sec. 8. NEW SECTION. 476A.19 Particular damage claims.

31 1. Compensable losses shall include but are not limited to
32 all of the following:

33 a. Loss or reduced yield of crops or forage on the facility
34 right-of-way, whether caused directly by construction or from
35 disturbance of usual farm operations.

1 *b.* Loss or reduced yield of crops from land near the
2 facility right-of-way resulting from lack of timely access
3 to the land or other disturbance of usual farm operations,
4 including interference with irrigation or drainage.

5 *c.* Costs associated with the application of fertilizer,
6 lime, or organic material by the landowner to restore land
7 disturbed by construction to full productivity.

8 *d.* Loss of or damage to trees of commercial or other value
9 that occurs at the time of construction or restoration, or at
10 the time of any subsequent work by the individual, company, or
11 corporation operating the facility.

12 *e.* The cost of or losses in moving or relocating livestock,
13 and the loss of gain by or the death or injury of livestock
14 caused by the interruption or relocation of normal feeding.

15 *f.* Erosion and soil compaction on lands attributable to
16 facility construction.

17 *g.* Damage to farm equipment caused by striking an electric
18 transmission line, debris, or other material reasonably
19 associated with facility construction while engaged in normal
20 farming operations as defined in section 480.1.

21 *h.* Damage to soil or water conservation structures caused
22 by construction, restoration, or subsequent work by the
23 individual, company, or corporation operating the facility
24 including but not limited to terraces, grassed waterways, water
25 and sediment control basins, ponds, saturated buffers, and
26 biofilters.

27 *i.* Damage to irrigation or drainage systems caused
28 by construction, restoration, or subsequent work by the
29 individual, company, or corporation operating the facility.

30 2. A claim for damages incurred under this section shall
31 not be precluded from renegotiation under section 6B.52 on
32 the grounds that it was apparent at the time of settlement or
33 on the grounds that more than five years have elapsed since
34 the date of the settlement. The landowner shall notify the
35 individual, company, or corporation operating the facility in

1 writing for as long as crop loss is present due to facility
2 construction, and may submit a global positioning yield map to
3 demonstrate such crop loss.

4 3. A landowner that incurred damage under this section is
5 eligible for compensation for damages. A landowner may file an
6 action for relief against a individual, company, or corporation
7 operating the facility in small claims or district court for
8 a violation of this section or pursue remedies under section
9 476A.20.

10 Sec. 9. NEW SECTION. 476A.20 Determination of installation
11 damages.

12 1. The county board of supervisors shall determine when
13 installation of a facility has been completed in that county
14 for the purposes of this section. Not less than ninety days
15 after the completion of installation, and if an agreement
16 cannot be made as to damages, a landowner whose land was
17 affected by the installation of the facility or a individual,
18 company, or corporation operating the facility may file with
19 the board of supervisors a petition asking that a compensation
20 commission determine the damages arising from the installation
21 of the facility.

22 2. a. If the board of supervisors by resolution approves
23 the petition, the landowner or individual, company, or
24 corporation operating the facility shall commence the
25 proceeding by filing an application with the chief judge of
26 the judicial district of the county for the appointment of a
27 compensation commission as provided in section 6B.4.

28 b. The application shall contain all of the following:

29 (1) The name and address of the applicant and a description
30 of the land on which the damage is claimed to have occurred.

31 (2) A description of the nature of the damage claimed to
32 have occurred and the amount of the damage claimed.

33 (3) The name and address of the individual, company, or
34 corporation operating the facility claimed to have caused the
35 damage or the name and address of the affected landowner.

1 3. *a.* After the commissioners have been appointed, the
2 applicant shall serve notice on the individual, company, or
3 corporation operating the facility or the landowner stating all
4 of the following:

5 (1) That a compensation commission has been appointed
6 to determine the damages caused by the installation of the
7 facility.

8 (2) The name and address of the applicant and a description
9 of the land on which the damage is claimed to have occurred.

10 (3) The date, time, and place when the commissioners will
11 view the premises and proceed to appraise the damages and that
12 the individual, company, or corporation operating the facility
13 or the landowner may appear before the commissioners.

14 *b.* If more than one landowner petitions the county board
15 of supervisors, the application to the chief judge, notice to
16 the individual, company, or corporation operating the facility,
17 and appraisal of damages shall be consolidated into one
18 application, notice, and appraisal. The county attorney may
19 assist in coordinating the consolidated application and notice,
20 but does not become an attorney for the landowners by doing so.

21 4. The commissioners shall view the land at the time
22 provided in the notice and assess the damages sustained by
23 the landowner by reason of the installation of the facility
24 and they shall file their report with the sheriff. The
25 appraisal of damages returned by the commissioners is final
26 unless appealed. After the appraisal of damages has been
27 delivered to the sheriff by the compensation commission, the
28 sheriff shall give written notice by ordinary mail to the
29 individual, company, or corporation operating the facility and
30 the landowner of the date the appraisal of damages was made,
31 the amount of the appraisal, and that any interested party
32 may appeal to the district court within thirty days of the date
33 of mailing. The sheriff shall endorse the date of mailing of
34 notice on the original appraisal of damages. At the time of
35 appeal, the appealing party shall give written notice to the

1 adverse party or the party's attorney and the sheriff.

2 5. Chapter 6B applies to this section to the extent it is
3 applicable and consistent with this section.

4 6. The individual, company, or corporation operating the
5 facility shall pay all costs of the assessment made by the
6 commissioners and reasonable attorney fees and costs incurred
7 by the landowner as determined by the commissioners if the
8 award of the commissioners exceeds one hundred ten percent of
9 the final offer of the individual, company, or corporation
10 operating the facility prior to the determination of damages.
11 The individual, company, or corporation operating the facility
12 shall file with the sheriff an affidavit setting forth the
13 most recent offer made to the landowner. Commissioners shall
14 receive a per diem of fifty dollars and actual and necessary
15 expenses incurred in the performance of their official duties.
16 The individual, company, or corporation operating the facility
17 shall also pay all costs occasioned by the appeal, including
18 reasonable attorney fees to be taxed by the court, unless on
19 the trial of the appeal the same or a lesser amount of damages
20 is awarded than was allowed by the compensation commission from
21 which the appeal was taken.

22 7. As used in this section, "*damages*" means compensation for
23 damages to the land, crops, and other personal property caused
24 by the construction activity of installing a facility and
25 its attendant structures, or a compensable loss as described
26 in section 476A.19, subsection 1, but does not include
27 compensation for a property interest, and "*landowner*" includes
28 a farm tenant.

29 8. The provisions of this section do not apply if the
30 easement provides for any other means of negotiation or
31 arbitration.

32 Sec. 10. NEW SECTION. 476A.21 Individual, company, or
33 corporation operating a facility — requirements.

34 1. An individual, company, or corporation operating a
35 facility shall provide a different company representative at

1 any time upon the request of a landowner as defined in section
2 476A.20.

3 2. An individual, company, or corporation operating a
4 facility shall provide ethics training from a third party
5 approved by the commission to all representatives of the
6 individual, company, or corporation operating a facility.

7 3. An individual, company, or corporation operating a
8 facility operating in the state shall establish and maintain
9 an internet site allowing landowners to file complaints with
10 the individual, company, or corporation operating the facility.
11 The individual, company, or corporation operating the facility
12 shall provide the commission a copy of received complaints.

13 4. An individual, company, or corporation operating a
14 facility shall consult with a landowner about the location of
15 safety fixtures prior to installing the safety fixtures.

16 Sec. 11. NEW SECTION. **476A.22 Operator liability.**

17 1. An operator of a facility shall be liable for all damages
18 resulting from the installation, construction, operation,
19 maintenance, repair, ruptures, and other failures of the
20 facility.

21 2. The operator shall indemnify and hold the surface owner
22 harmless from any loss, claim, or damage resulting from the
23 installation, construction, operation, maintenance, repair,
24 ruptures, and other failures of the facility, other than for
25 gross negligence or willful misconduct of the surface owner.

26 Sec. 12. Section 478.2, subsection 2, paragraph a, Code
27 2025, is amended to read as follows:

28 a. A member of the commission, the counsel of the
29 commission, or a presiding officer designated by the commission
30 shall serve as the presiding officer at each meeting, shall
31 present an agenda for such meeting, which shall include
32 a summary of the legal rights of the affected landowners,
33 and shall distribute and review the statement of individual
34 rights required under [section 6B.2A, subsection 1.](#) At least
35 one member of the commission shall attend each informational

1 meeting. If at any point during the meeting no member of the
2 commission is available for any reason, the meeting shall pause
3 until at least one member of the commission returns. A formal
4 record of the meeting shall not be required.

5 Sec. 13. Section 478.2, subsection 4, Code 2025, is amended
6 to read as follows:

7 4. A person seeking rights under **this chapter** shall not
8 negotiate or purchase any easements or other interests in land
9 in any county known to be affected by the proposed project
10 prior to the informational meeting. After such meeting,
11 if notice by publication was properly made, an electric
12 transmission owner as defined in section 478.16 and a landowner
13 may enter a voluntary agreement for an interest in land without
14 regard to whether the landowner received notice by mail.

15 Sec. 14. Section 478.5, Code 2025, is amended to read as
16 follows:

17 **478.5 Notice — objections filed.**

18 1. Upon the filing of such petition, the utilities
19 commission shall cause a notice, addressed to the citizens
20 of each county through which the proposed line or lines
21 will extend, to be published in a newspaper located in each
22 such county for two consecutive weeks. Said notice shall
23 contain a general statement of the contents and purpose of the
24 petition, a general description of the lands and highways to
25 be traversed by the proposed line or lines, and shall state
26 that any objections thereto must be filed in writing with the
27 commission not later than twenty days after the date of last
28 publication of the notice. Any person, company, city, or
29 corporation whose rights may be affected, shall have the right
30 to file written objections to the proposed improvement or to
31 the granting of such franchise; such objections shall be filed
32 with the commission not later than twenty days after the date
33 of last publication and shall state the grounds therefor. The
34 commission may allow objections to be filed later in which
35 event the applicant must be given reasonable time to meet such

1 late objections.

2 2. If a route is readjusted due to an objection filed
3 pursuant to this section, the utilities commission shall not
4 require the individual, company, or corporation asking for the
5 franchise to resubmit a petition for a franchise pursuant to
6 section 478.2.

7 Sec. 15. Section 478.6, Code 2025, is amended by adding the
8 following new subsection:

9 NEW SUBSECTION. 4. The commission shall render a decision
10 on a petition requesting the power of eminent domain no later
11 than one year after the request for eminent domain is received
12 by the commission.

13 Sec. 16. Section 478.17, Code 2025, is amended to read as
14 follows:

15 **478.17 Access to lines — damages.**

16 1. Individuals or corporations operating transmission lines
17 shall have reasonable access to the transmission lines for the
18 purpose of constructing, reconstructing, enlarging, repairing,
19 or locating the poles, wires, or construction and other devices
20 used in or upon any line, but shall pay to the owner of the
21 lands and of crops on the lands all damages to the lands or
22 crops caused by entering, using, and occupying the lands for
23 those purposes. **This section** shall not prevent the execution
24 of an agreement between the person, ~~or~~ company, or corporation
25 owning or operating the lines and the owner of the land or
26 crops regarding the use of the land.

27 2. A claim for damages pursuant to this section due to crop
28 yield loss shall not be precluded from renegotiation under
29 section 6B.52 on the grounds that the damages were apparent at
30 the time of settlement or on the grounds that more than five
31 years have elapsed since the date of the settlement.

32 Sec. 17. NEW SECTION. **478.17A Drainage tile — liability.**

33 For an applicant exercising the power of eminent domain
34 pursuant to this chapter, an electric transmission owner
35 as defined in section 478.16 shall be liable for repairs

1 of drainage tile installed prior to the installation of
2 the electric transmission line, when the installation,
3 construction, operation, maintenance, or repair of the electric
4 transmission line is the proximate cause of the damage to
5 the drainage tile. The operator's liability pursuant to
6 this section shall continue for the life of the electric
7 transmission line and shall include all of the following:

8 1. The full replacement costs of the drainage tile,
9 including, without limitation, material, labor, and equipment.

10 2. The reclamation and restoration of topsoil as part of any
11 drainage tile repair.

12 Sec. 18. NEW SECTION. **478.17B Operator liability.**

13 1. Individuals, companies, or corporations operating
14 transmission lines shall be liable for all damages resulting
15 from the installation, construction, operation, maintenance,
16 repair, ruptures, and other failures of the electric
17 transmission line.

18 2. The individual, company, or corporation operating the
19 transmission line shall indemnify and hold the surface owner
20 harmless from any loss, claim, or damage resulting from the
21 installation, construction, operation, maintenance, repair,
22 ruptures, and other failures of the electric transmission line,
23 other than for gross negligence or willful misconduct of the
24 surface owner.

25 Sec. 19. NEW SECTION. **478.34 Land restoration standards.**

26 1. The commission, pursuant to chapter 17A, shall
27 adopt rules establishing standards for the restoration of
28 agricultural lands during and after the electric transmission
29 line construction. In addition to the requirements of section
30 17A.4, the commission shall distribute copies of the notice of
31 intended action and opportunity for oral presentations to each
32 county board of supervisors. Any county board of supervisors
33 may, under the provisions of chapter 17A, and subsequent to
34 the rulemaking proceedings, petition under those provisions
35 for additional rulemaking to establish standards for land

1 restoration after electric transmission line construction
2 within that county. Upon the request of the petitioning
3 county, the commission shall schedule a hearing to consider the
4 merits of the petition. Rules adopted under this section shall
5 not apply to land located within city boundaries unless the
6 land is used for agricultural purposes. Rules adopted under
7 this section shall address but are not limited to all of the
8 following subject matters:

- 9 *a.* Topsoil separation and replacement.
- 10 *b.* Temporary and permanent repair to drain tile.
- 11 *c.* Removal of rocks and debris from the right-of-way.
- 12 *d.* Restoration of areas of soil compaction.
- 13 *e.* Restoration of terraces, waterways, and other erosion
14 control structures.
- 15 *f.* Revegetation of untilled land.
- 16 *g.* Future installation of drain tile or soil conservation
17 structures.
- 18 *h.* Restoration of land slope and contour.
- 19 *i.* Restoration of areas used for field entrances and
20 temporary roads.
- 21 *j.* Construction in wet conditions.
- 22 *k.* Designation of a point of contact for an individual,
23 company, or corporation operating the transmission line for
24 landowner inquiries or claims.

25 2. The county board of supervisors shall cause an on-site
26 inspection for compliance with the standards adopted under
27 this section to be performed at any electric transmission line
28 construction project in the county. A licensed professional
29 engineer familiar with the standards adopted under this section
30 and registered under chapter 542B shall be responsible for the
31 inspection. A county board of supervisors may contract for the
32 services of a licensed professional engineer for the purposes
33 of the inspection. The reasonable costs of the inspection
34 shall be paid by the individual, company, or corporation
35 operating the transmission line.

1 3. If the inspector determines that there has been a
2 violation of the standards adopted under this section, of
3 the land restoration plan, or of an independent agreement on
4 land restoration or line location executed in accordance with
5 subsection 10, the inspector shall give oral notice, followed
6 by written notice, to the individual, company, or corporation
7 operating the transmission line and the contractor operating
8 for the individual, company, or corporation operating the
9 transmission line and order corrective action to be taken in
10 compliance with the standards. The costs of the corrective
11 action shall be borne by the contractor operating for the
12 individual, company, or corporation operating the transmission
13 line.

14 4. An inspector shall adequately inspect underground
15 improvements altered during construction of the electric
16 transmission line. An inspection shall be conducted at
17 the time of the replacement or repair of the underground
18 improvements. An inspector shall be present on the site at
19 all times at each phase and separate activity of the opening
20 of the trench, the restoration of underground improvements,
21 and backfilling. The individual, company, or corporation
22 operating the transmission line and its contractor shall keep
23 an inspector continually informed of the work schedule and any
24 schedule changes. If proper notice is given, construction
25 shall not be delayed due to an inspector's failure to be
26 present on the site.

27 5. If the individual, company, or corporation operating
28 the transmission line or its contractor does not comply with
29 the requirements of this section, with the land restoration
30 plan or line location, or with an independent agreement on
31 land restoration executed in accordance with subsection 10,
32 the county board of supervisors or a landowner may petition
33 the commission for an order requiring corrective action to
34 be taken. In addition, the county board of supervisors or
35 a landowner may file a complaint with the commission seeking

1 imposition of civil penalties under section 478.29. A
2 landowner may supply a copy of the complaint to the county
3 board of supervisors where the complaint originated.

4 6. The individual, company, or corporation operating the
5 transmission line shall allow landowners and the inspector to
6 view the proposed center line of the electric transmission
7 line prior to commencing trenching operations to ensure that
8 construction takes place in its proper location.

9 7. An inspector may temporarily halt the construction
10 if the construction is not in compliance with this chapter
11 and the standards adopted pursuant to this chapter, the land
12 restoration plan, or the terms of an independent agreement
13 with the individual, company, or corporation operating the
14 transmission line regarding land restoration or line location
15 executed in accordance with subsection 10, until the inspector
16 consults with the supervisory personnel of the individual,
17 company, or corporation operating the transmission line.

18 8. The commission shall instruct inspectors appointed by
19 the board of supervisors regarding the content of the statutes
20 and rules and the inspectors' responsibility to require
21 construction conforming with the standards provided by this
22 chapter.

23 9. Petitioners for a permit for electric transmission
24 line construction shall file with the petition a written
25 land restoration plan showing how the requirements of this
26 section, and of rules adopted pursuant to this section, will
27 be met. The individual, company, or corporation operating
28 the transmission line shall provide copies of the plan to
29 all landowners of property that will be disturbed by the
30 construction.

31 10. This section does not preclude the application of
32 provisions for protecting or restoring property that are
33 different than those prescribed in this section, in rules
34 adopted under this section, or in the land restoration plan,
35 if the alternative provisions are contained in agreements

1 independently executed by the individual, company, or
2 corporation operating the transmission line and the landowner,
3 and if the alternative provisions are not inconsistent with
4 state law or with rules adopted by the commission. Independent
5 agreements on land restoration or line location between the
6 landowner and individual, company, or corporation operating the
7 transmission line shall be in writing and a copy provided to
8 the county inspector.

9 11. For the purposes of this section, "*construction*"
10 includes the removal of a previously constructed electric
11 transmission line.

12 12. The requirements of this section shall apply only to
13 electric transmission line construction projects commenced on
14 or after June 1, 2025.

15 Sec. 20. NEW SECTION. 478.35 Particular damage claims.

16 1. Compensable losses shall include but are not limited to
17 all of the following:

18 a. Loss or reduced yield of crops or forage on the electric
19 transmission line right-of-way, whether caused directly by
20 construction or from disturbance of usual farm operations.

21 b. Loss or reduced yield of crops from land near the
22 electric transmission line right-of-way resulting from lack of
23 timely access to the land or other disturbance of usual farm
24 operations, including interference with irrigation or drainage.

25 c. Costs associated with the application of fertilizer,
26 lime, or organic material by the landowner to restore land
27 disturbed by construction to full productivity.

28 d. Loss of or damage to trees of commercial or other value
29 that occurs at the time of construction or restoration, or at
30 the time of any subsequent work by the individual, company, or
31 corporation operating the transmission line.

32 e. The cost of or losses in moving or relocating livestock,
33 and the loss of gain by or the death or injury of livestock
34 caused by the interruption or relocation of normal feeding.

35 f. Erosion and soil compaction on lands attributable to

1 electric transmission line construction.

2 *g.* Damage to farm equipment caused by striking an electric
3 transmission line, debris, or other material reasonably
4 associated with electric transmission line construction while
5 engaged in normal farming operations as defined in section
6 480.1.

7 *h.* Damage to soil or water conservation structures caused
8 by construction, restoration, or subsequent work by the
9 individual, company, or corporation operating the transmission
10 line including but not limited to terraces, grassed waterways,
11 water and sediment control basins, ponds, saturated buffers,
12 and biofilters.

13 *i.* Damage to irrigation or drainage systems caused
14 by construction, restoration, or subsequent work by the
15 individual, company, or corporation operating the transmission
16 line.

17 2. A claim for damages incurred under this section shall
18 not be precluded from renegotiation under section 6B.52 on
19 the grounds that it was apparent at the time of settlement or
20 on the grounds that more than five years have elapsed since
21 the date of the settlement. The landowner shall notify the
22 individual, company, or corporation operating the transmission
23 line in writing for as long as crop loss is present due to
24 electric transmission line construction, and may submit a
25 global positioning yield map to demonstrate such crop loss.

26 3. A landowner that incurred damage under this section
27 is eligible for compensation for damages. A landowner may
28 file an action for relief against an individual, company, or
29 corporation operating the transmission line in small claims
30 or district court for a violation of this section or pursue
31 remedies under section 478.36.

32 Sec. 21. NEW SECTION. 478.36 Determination of installation
33 damages.

34 1. The county board of supervisors shall determine when
35 installation of an electric transmission line has been

1 completed in that county for the purposes of this section. Not
2 less than ninety days after the completion of installation,
3 and if an agreement cannot be made as to damages, a landowner
4 whose land was affected by the installation of the electric
5 transmission line or a individual, company, or corporation
6 operating the transmission line may file with the board of
7 supervisors a petition asking that a compensation commission
8 determine the damages arising from the installation of the
9 electric transmission line.

10 2. a. If the board of supervisors by resolution approves
11 the petition, the landowner or individual, company, or
12 corporation operating the transmission line shall commence the
13 proceeding by filing an application with the chief judge of
14 the judicial district of the county for the appointment of a
15 compensation commission as provided in section 6B.4.

16 b. The application shall contain all of the following:

17 (1) The name and address of the applicant and a description
18 of the land on which the damage is claimed to have occurred.

19 (2) A description of the nature of the damage claimed to
20 have occurred and the amount of the damage claimed.

21 (3) The name and address of the individual, company, or
22 corporation operating the transmission line claimed to have
23 caused the damage or the name and address of the affected
24 landowner.

25 3. a. After the commissioners have been appointed, the
26 applicant shall serve notice on the individual, company, or
27 corporation operating the transmission line or the landowner
28 stating all of the following:

29 (1) That a compensation commission has been appointed
30 to determine the damages caused by the installation of the
31 electric transmission line.

32 (2) The name and address of the applicant and a description
33 of the land on which the damage is claimed to have occurred.

34 (3) The date, time, and place when the commissioners
35 will view the premises and proceed to appraise the damages

1 and that the individual, company, or corporation operating
2 the transmission line or the landowner may appear before the
3 commissioners.

4 *b.* If more than one landowner petitions the county board of
5 supervisors, the application to the chief judge, notice to the
6 individual, company, or corporation operating the transmission
7 line, and appraisal of damages shall be consolidated into
8 one application, notice, and appraisal. The county attorney
9 may assist in coordinating the consolidated application and
10 notice, but does not become an attorney for the landowners by
11 doing so.

12 4. The commissioners shall view the land at the time
13 provided in the notice and assess the damages sustained
14 by the landowner by reason of the installation of the
15 electric transmission line and they shall file their report
16 with the sheriff. The appraisal of damages returned
17 by the commissioners is final unless appealed. After the
18 appraisal of damages has been delivered to the sheriff by
19 the compensation commission, the sheriff shall give written
20 notice by ordinary mail to the individual, company, or
21 corporation operating the transmission line and the landowner
22 of the date the appraisal of damages was made, the amount of
23 the appraisal, and that any interested party may appeal to
24 the district court within thirty days of the date of mailing.
25 The sheriff shall endorse the date of mailing of notice on the
26 original appraisal of damages. At the time of appeal, the
27 appealing party shall give written notice to the adverse party
28 or the party's attorney and the sheriff.

29 5. Chapter 6B applies to this section to the extent it is
30 applicable and consistent with this section.

31 6. The individual, company, or corporation operating the
32 transmission line shall pay all costs of the assessment made
33 by the commissioners and reasonable attorney fees and costs
34 incurred by the landowner as determined by the commissioners if
35 the award of the commissioners exceeds one hundred ten percent

1 of the final offer of the individual, company, or corporation
2 operating the transmission line prior to the determination of
3 damages. The individual, company, or corporation operating
4 the transmission line shall file with the sheriff an affidavit
5 setting forth the most recent offer made to the landowner.
6 Commissioners shall receive a per diem of fifty dollars and
7 actual and necessary expenses incurred in the performance of
8 their official duties. The individual, company, or corporation
9 operating the transmission line shall also pay all costs
10 occasioned by the appeal, including reasonable attorney fees
11 to be taxed by the court, unless on the trial of the appeal the
12 same or a lesser amount of damages is awarded than was allowed
13 by the compensation commission from which the appeal was taken.

14 7. As used in this section, "*damages*" means compensation
15 for damages to the land, crops, and other personal property
16 caused by the construction activity of installing an
17 electric transmission line and its attendant structures, or a
18 compensable loss as described in section 478.35, subsection 1,
19 but does not include compensation for a property interest, and
20 "*landowner*" includes a farm tenant.

21 8. The provisions of this section do not apply if the
22 easement provides for any other means of negotiation or
23 arbitration.

24 Sec. 22. NEW SECTION. 478.37 Individual, company,
25 or corporation operating the transmission line company —
26 requirements.

27 1. An individual, company, or corporation operating
28 the transmission line shall provide a different company
29 representative at any time upon the request of a landowner as
30 defined in section 478.36.

31 2. An individual, company, or corporation operating
32 the transmission line shall provide ethics training from
33 a third party approved by the commission to all company
34 representatives.

35 3. An individual, company, or corporation operating the

1 transmission line operating in the state shall establish
2 and maintain an internet site allowing landowners to file
3 complaints with the individual, company, or corporation
4 operating the transmission line. The individual, company, or
5 corporation operating the transmission line shall provide the
6 commission a copy of received complaints.

7 4. An individual, company, or corporation operating the
8 transmission line shall consult with a landowner about the
9 location of safety fixtures prior to installing the safety
10 fixtures.

11 Sec. 23. NEW SECTION. 478.38 Hearing — commission member
12 attendance.

13 All hearings initiated under this chapter shall follow the
14 attendance rules governing commission members as provided in
15 section 476.33, subsection 5.

16 Sec. 24. Section 479.5, subsection 3, paragraph a, Code
17 2025, is amended to read as follows:

18 a. A pipeline company shall hold informational meetings
19 in each county in which real property or property rights will
20 be affected at least thirty days prior to filing the petition
21 for a new pipeline. A member of the commission or a person
22 designated by the commission shall serve as the presiding
23 officer at each meeting, shall present an agenda for the
24 meeting, which shall include a summary of the legal rights
25 of the affected landowners, and shall distribute and review
26 the statement of individual rights required under section
27 6B.2A. At least one member of the commission shall attend each
28 informational meeting. If at any point during the meeting
29 no member of the commission is available for any reason, the
30 meeting shall pause until at least one member of the commission
31 returns. A formal record of the meeting shall not be required.

32 Sec. 25. Section 479.5, subsection 5, Code 2025, is amended
33 to read as follows:

34 5. A pipeline company seeking rights under [this chapter](#)
35 shall not negotiate or purchase any easements or other

1 interests in land in any county known to be affected by the
2 proposed project prior to the informational meeting. After
3 such meeting, if notice by publication was properly made,
4 a pipeline company and a landowner may enter a voluntary
5 agreement for an interest in land without regard to whether the
6 landowner received notice by mail.

7 Sec. 26. Section 479.9, Code 2025, is amended to read as
8 follows:

9 **479.9 Objections.**

10 1. Any person, corporation, company, or city whose rights
11 or interests may be affected by a proposed pipeline or lines
12 or gas storage facilities may file written objections to the
13 proposed pipeline or lines or gas storage facilities or to the
14 granting of a permit.

15 2. If a pipeline or line route is readjusted or a gas
16 storage facility is relocated due to an objection filed
17 pursuant to this section, the utilities commission shall not
18 require a pipeline company to resubmit an application for a
19 permit pursuant to section 479.5.

20 Sec. 27. Section 479.12, Code 2025, is amended to read as
21 follows:

22 **479.12 Final order — condition.**

23 The commission may grant a permit in whole or in part upon
24 terms, conditions, and restrictions as to safety requirements
25 and as to location and route as determined by it to be just
26 and proper. Before a permit is granted to a pipeline company,
27 the commission, after a public hearing as provided in this
28 chapter, shall determine whether the services proposed to be
29 rendered will promote the public convenience and necessity, and
30 an affirmative finding to that effect is a condition precedent
31 to the granting of a permit. The commission shall render a
32 decision on a petition requesting the power of eminent domain
33 no later than one year after the request for eminent domain is
34 received by the commission.

35 Sec. 28. Section 479.25, Code 2025, is amended to read as

1 follows:

2 **479.25 Damages.**

3 1. A pipeline company operating a pipeline or a gas
4 storage area shall have reasonable access to the pipeline or
5 gas storage area for the purpose of constructing, operating,
6 maintaining, or locating pipes, pumps, pressure apparatus or
7 other stations, wells, devices, or equipment used in or upon
8 the pipeline or gas storage area; shall pay the owner of the
9 land for the right of entry and the owner of crops for all
10 damages caused by entering, using, or occupying the land; and
11 shall pay to the owner all damages caused by the completion
12 of construction of the pipeline due to wash or erosion of the
13 soil at or along the location of the pipeline and due to the
14 settling of the soil along and above the pipeline. However,
15 this section shall not prevent the execution of an agreement
16 between the pipeline company and the owner of land or crops
17 with reference to the use of the land.

18 2. A claim for damages pursuant to this section due to crop
19 yield loss shall not be precluded from renegotiation under
20 section 6B.52 on the grounds that the damages were apparent at
21 the time of settlement or on the grounds that more than five
22 years have elapsed since the date of the settlement.

23 Sec. 29. NEW SECTION. **479.25A Operator liability.**

24 1. An operator of a pipeline or line or gas storage
25 facility shall be liable for all damages resulting from the
26 installation, construction, operation, maintenance, repair,
27 leaks, ruptures, and other failures of the pipeline or line or
28 gas storage facility.

29 2. The operator shall indemnify and hold the surface owner
30 harmless from any loss, claim, or damage resulting from the
31 installation, construction, operation, maintenance, repair,
32 leaks, ruptures, and other failures of the pipeline or line
33 or gas storage facility, other than for gross negligence or
34 willful misconduct of the surface owner.

35 Sec. 30. Section 479.29, Code 2025, is amended by adding the

1 following new subsection:

2 NEW SUBSECTION. 1A. For a pipeline company exercising
3 the power of eminent domain pursuant to this chapter, the
4 pipeline company shall be liable for repairs of drain tile
5 installed prior to the installation of the pipeline, when the
6 installation, construction, operation, maintenance, or repair
7 of the pipeline is the proximate cause of the damage to the
8 drainage tile. The pipeline company's liability pursuant to
9 this section shall continue for the life of the pipeline and
10 shall include all of the following:

11 a. The full replacement costs of the drainage tile,
12 including, without limitation, material, labor, and equipment.

13 b. The reclamation and restoration of topsoil as part of any
14 drainage tile repair.

15 Sec. 31. Section 479.29, subsection 5, Code 2025, is amended
16 to read as follows:

17 5. If the pipeline company or its contractor does not
18 comply with the requirements of [this section](#), with the
19 land restoration plan, or with an independent agreement on
20 land restoration or line location executed in accordance
21 with [subsection 10](#), the county board of supervisors or a
22 landowner may petition the commission for an order requiring
23 corrective action to be taken. In addition, the county board
24 of supervisors or a landowner may file a complaint with the
25 commission seeking imposition of civil penalties pursuant to
26 section 479.31. A landowner may supply a copy of the complaint
27 to the county board of supervisors where the complaint
28 originated.

29 Sec. 32. Section 479.45, subsection 1, paragraphs b and f,
30 Code 2025, are amended to read as follows:

31 b. Loss or reduced yield of crops or yield from land near
32 the pipeline right-of-way resulting from lack of timely access
33 to the land or other disturbance of usual farm operations,
34 including interference with irrigation or drainage.

35 f. Erosion and soil compaction on lands attributable to

1 pipeline construction.

2 Sec. 33. Section 479.45, subsection 1, Code 2025, is amended
3 by adding the following new paragraphs:

4 NEW PARAGRAPH. *h.* Damage to soil or water conservation
5 structures caused by construction, restoration, or subsequent
6 work by the pipeline company including but not limited to
7 terraces, grassed waterways, water and sediment control basins,
8 ponds, saturated buffers, and biofilters.

9 NEW PARAGRAPH. *i.* Damage to irrigation or drainage systems
10 caused by construction, restoration, or subsequent work by the
11 pipeline company.

12 Sec. 34. Section 479.45, subsection 2, Code 2025, is amended
13 to read as follows:

14 2. A claim for ~~damage for future crop deficiency within the~~
15 ~~easement strip~~ damages incurred under this section shall not be
16 precluded from renegotiation under [section 6B.52](#) on the grounds
17 that it was apparent at the time of settlement ~~unless the~~
18 ~~settlement expressly releases the pipeline company from claims~~
19 ~~for damage to the productivity of the soil or on the grounds~~
20 that more than five years have elapsed since the date of the
21 settlement. The landowner shall notify the company in writing
22 ~~fourteen days prior to harvest in each year to assess crop~~
23 deficiency for as long as crop loss is present due to pipeline
24 or line or gas storage facility construction, and may submit a
25 global positioning yield map to demonstrate such crop loss.

26 Sec. 35. Section 479.45, Code 2025, is amended by adding the
27 following new subsection:

28 NEW SUBSECTION. 3. A landowner that incurred damage under
29 this section is eligible for compensation for damages. A
30 landowner may file an action for relief against a pipeline
31 company in small claims or district court for a violation of
32 this section or pursue remedies under section 479.46.

33 Sec. 36. Section 479.46, subsection 7, Code 2025, is amended
34 to read as follows:

35 7. As used in [this section](#), “*damages*” means compensation for

1 damages to the land, crops, and other personal property caused
2 by the construction activity of installing a pipeline and its
3 attendant structures or underground storage facility, or a
4 compensable loss as described in section 479.45, subsection 1,
5 but does not include compensation for a property interest, and
6 "landowner" includes a farm tenant.

7 Sec. 37. NEW SECTION. **479.50 Pipeline company —**
8 **requirements.**

9 1. A pipeline company shall provide a different company
10 representative at any time upon the request of a landowner.

11 2. A pipeline company shall provide ethics training from
12 a third party approved by the commission to all company
13 representatives.

14 3. A pipeline company operating in the state shall establish
15 and maintain an internet site allowing landowners to file
16 complaints with the pipeline company. The pipeline company
17 shall provide the commission a copy of received complaints.

18 4. A pipeline company shall consult with a landowner about
19 the location of safety fixtures prior to installing the safety
20 fixtures.

21 Sec. 38. NEW SECTION. **479.51 Hearing — commission member**
22 **attendance.**

23 All hearings initiated under this chapter shall follow the
24 attendance rules governing commission members as provided in
25 section 476.33, subsection 5.

26 Sec. 39. Section 479A.11, Code 2025, is amended to read as
27 follows:

28 **479A.11 Damages.**

29 1. A pipeline company operating pipelines or underground
30 storage shall be given reasonable access to the pipelines and
31 storage areas for the purpose of constructing, operating,
32 maintaining, or locating their pipes, pumps, pressure
33 apparatus, or other stations, wells, devices, or equipment used
34 in or upon a pipeline or storage area, but shall pay the owner
35 of the lands for the right of entry and the owner of crops on

1 the land all damages caused by entering, using, or occupying
2 the lands for these purposes; and shall pay to the owner of the
3 lands, after the completion of construction of the pipeline or
4 storage, all damages caused by settling of the soil along and
5 above the pipeline, and wash or erosion of the soil along the
6 pipeline due to the construction of the pipeline. However,
7 this section does not prevent the execution of an agreement
8 with other terms between the pipeline company and the owner of
9 the land or crops with reference to their use.

10 2. A claim for crop yield loss damages pursuant to this
11 section shall not be precluded from renegotiation under section
12 6B.52 on the grounds that the damages were apparent at the time
13 of settlement or on the grounds that more than five years have
14 elapsed since the date of the settlement.

15 Sec. 40. Section 479B.4, subsection 3, Code 2025, is amended
16 to read as follows:

17 3. The pipeline company shall hold informational meetings
18 in each county in which real property or property rights will
19 be affected at least thirty days prior to filing the petition
20 for a new pipeline. A member of the commission, or a person
21 designated by the commission, shall serve as the presiding
22 officer at each meeting and present an agenda for the meeting,
23 which shall include a summary of the legal rights of the
24 affected landowners. At least one member of the commission
25 shall attend each informational meeting. If at any point
26 during the meeting no member of the commission is available for
27 any reason, the meeting shall pause until at least one member
28 of the commission returns. No formal record of the meeting
29 shall be required. The meeting shall be held at a location
30 reasonably accessible to all persons who may be affected by
31 granting the permit.

32 Sec. 41. Section 479B.4, subsection 6, Code 2025, is amended
33 to read as follows:

34 6. A pipeline company seeking rights under [this chapter](#)
35 shall not negotiate or purchase an easement or other interest

1 in land in a county known to be affected by the proposed
2 project prior to the informational meeting. After such
3 meeting, if notice by publication was properly made, a pipeline
4 company and a landowner may enter a voluntary agreement for
5 an interest in land without regard to whether the landowner
6 received notice by mail.

7 Sec. 42. Section 479B.7, Code 2025, is amended by adding the
8 following new subsection:

9 NEW SUBSECTION. 3. If a pipeline route is readjusted due
10 to an objection filed pursuant to this section, the utilities
11 commission shall not require a pipeline company to resubmit an
12 application for a permit pursuant to section 479B.4.

13 Sec. 43. Section 479B.9, Code 2025, is amended to read as
14 follows:

15 **479B.9 Final order — condition.**

16 The commission may grant a permit in whole or in part upon
17 terms, conditions, and restrictions as to location and route
18 as it determines to be just and proper. A permit shall not be
19 granted to a pipeline company unless the commission determines
20 that the proposed services will promote the public convenience
21 and necessity. The commission shall render a decision on a
22 petition requesting the power of eminent domain no later than
23 one year after the request for eminent domain is received by
24 the commission.

25 Sec. 44. Section 479B.17, Code 2025, is amended to read as
26 follows:

27 **479B.17 Damages.**

28 1. A pipeline company operating a pipeline or an
29 underground storage facility shall have reasonable access to
30 the pipeline or underground storage facility for the purpose
31 of constructing, operating, maintaining, or locating pipes,
32 pumps, pressure apparatus, or other stations, wells, devices,
33 or equipment used in or upon the pipeline or underground
34 storage facility. A pipeline company shall pay the owner of
35 the land for the right of entry and the owner of crops for all

1 damages caused by entering, using, or occupying the lands and
2 shall pay to the owner all damages caused by the completion
3 of construction of the pipeline due to wash or erosion of the
4 soil at or along the location of the pipeline and due to the
5 settling of the soil along and above the pipeline. However,
6 this section does not prevent the execution of an agreement
7 between the pipeline company and the owner of the land or crops
8 with reference to the use of the land.

9 2. A claim for crop yield loss damages pursuant to this
10 section shall not be precluded from renegotiation under section
11 6B.52 on the grounds that the damages were apparent at the time
12 of settlement or on the grounds that more than five years have
13 elapsed since the date of the settlement.

14 Sec. 45. Section 479B.20, Code 2025, is amended by adding
15 the following new subsection:

16 NEW SUBSECTION. 1A. For a pipeline company exercising
17 the power of eminent domain pursuant to this chapter, the
18 pipeline company shall be liable for repairs of drainage tile
19 installed prior to the installation of the pipeline, when the
20 installation, construction, operation, maintenance, or repair
21 of the pipeline is the proximate cause of the damage to the
22 drainage tile. The pipeline company's liability pursuant to
23 this section shall continue for the life of the pipeline and
24 shall include all of the following:

25 a. The full replacement costs of the drainage tile,
26 including, without limitation, material, labor, and equipment.

27 b. The reclamation and restoration of topsoil as part of any
28 drainage tile repair.

29 Sec. 46. Section 479B.20, subsection 5, Code 2025, is
30 amended to read as follows:

31 5. If the pipeline company or its contractor does not
32 comply with the requirements of [this section](#), with the land
33 restoration plan or line location, or with an independent
34 agreement on land restoration executed in accordance with
35 subsection 10, the county board of supervisors or a landowner

1 may petition the commission for an order requiring corrective
2 action to be taken. In addition, the county board of
3 supervisors or a landowner may file a complaint with the
4 commission seeking imposition of civil penalties under section
5 479B.21. A landowner may supply a copy of the complaint to the
6 county board of supervisors where the complaint originated.

7 Sec. 47. NEW SECTION. **479B.27A Operator liability.**

8 1. An operator of a pipeline facility carrying a hazardous
9 liquid shall be liable for all damages resulting from the
10 installation, construction, operation, maintenance, repair,
11 leaks, ruptures, and other failures of the pipeline facility.

12 2. The operator shall indemnify and hold the surface owner
13 harmless from any loss, claim, or damage resulting from the
14 installation, construction, operation, maintenance, repair,
15 leaks, ruptures, and other failures of the pipeline facility,
16 other than for gross negligence or willful misconduct of the
17 surface owner.

18 Sec. 48. Section 479B.29, subsection 1, paragraphs b and f,
19 Code 2025, are amended to read as follows:

20 *b.* Loss or reduced yield of crops or yield from land near
21 the pipeline right-of-way resulting from lack of timely access
22 to the land or other disturbance of usual farm operations,
23 including interference with irrigation or drainage.

24 *f.* Erosion and soil compaction on lands attributable to
25 pipeline construction.

26 Sec. 49. Section 479B.29, subsection 1, Code 2025, is
27 amended by adding the following new paragraphs:

28 NEW PARAGRAPH. *h.* Damage to soil or water conservation
29 structures caused by construction, restoration, or subsequent
30 work by the pipeline company including but not limited to
31 terraces, grassed waterways, water and sediment control basins,
32 ponds, saturated buffers, and biofilters.

33 NEW PARAGRAPH. *i.* Damage to irrigation or drainage systems
34 caused by construction, restoration, or subsequent work by the
35 pipeline company.

1 Sec. 50. Section 479B.29, subsection 2, Code 2025, is
2 amended to read as follows:

3 2. A claim for ~~damage for future crop deficiency within the~~
4 ~~easement strip~~ damages incurred under this section shall not be
5 precluded from renegotiation under section 6B.52 on the grounds
6 that it was apparent at the time of settlement ~~unless the~~
7 ~~settlement expressly releases the pipeline company from claims~~
8 ~~for damage to the productivity of the soil or on the grounds~~
9 that more than five years have elapsed since the date of the
10 settlement. The landowner shall notify the pipeline company
11 in writing ~~fourteen days prior to harvest in each year to~~
12 ~~assess crop deficiency~~ for as long as crop loss is present due
13 to pipeline construction, and may submit a global positioning
14 yield map to demonstrate such crop loss.

15 Sec. 51. Section 479B.29, Code 2025, is amended by adding
16 the following new subsection:

17 NEW SUBSECTION. 3. A landowner that incurred damage under
18 this section is eligible for compensation for damages. A
19 landowner may file an action for relief against a pipeline
20 company in small claims or district court for a violation of
21 this section or pursue remedies under section 479B.30.

22 Sec. 52. Section 479B.30, subsection 7, Code 2025, is
23 amended to read as follows:

24 7. As used in this section, “*damages*” means compensation for
25 damages to the land, crops, and other personal property caused
26 by the construction of a pipeline and its attendant structures
27 or underground storage facility, or a compensable loss as
28 described in section 479B.29, subsection 1, but does not
29 include compensation for a property interest, and “*landowner*”
30 includes a farm tenant.

31 Sec. 53. NEW SECTION. **479B.34 Pipeline company —**
32 **requirements.**

33 1. A pipeline company shall provide a different company
34 representative at any time upon the request of a landowner as
35 defined in section 479B.30.

1 2. A pipeline company shall provide ethics training from
2 a third party approved by the commission to all company
3 representatives.

4 3. A pipeline company operating in the state shall establish
5 and maintain an internet site allowing landowners to file
6 complaints with the pipeline company. The pipeline company
7 shall provide the commission a copy of received complaints.

8 4. A pipeline company shall consult with a landowner about
9 the location of safety fixtures prior to installing the safety
10 fixtures.

11 Sec. 54. NEW SECTION. **479B.35 Hearing — commission member**
12 **attendance.**

13 All hearings initiated under this chapter shall follow the
14 attendance rules governing commission members as provided in
15 section 476.33, subsection 5.

16 Sec. 55. **RETROACTIVE APPLICABILITY.** The section of this Act
17 amending section 479B.4, subsection 6, applies retroactively to
18 voluntary agreements between a pipeline company and a landowner
19 entered into on or after January 1, 2024.>

20 2. Title page, by striking lines 1 through 8 and
21 inserting <An Act relating to public utilities, including
22 land restoration standards, claims for damages, liability,
23 commission member attendance at hearings and informational
24 meetings, easement negotiations, and utility owner
25 requirements, making civil penalties applicable, and including
26 retroactive applicability provisions.>

COMMITTEE ON COMMERCE

MIKE BOUSSELOT, CHAIRPERSON